Finally, ASEAN has reversed its usual posture of non-interference. The refugee crises provoked by persecution in Rakhine have become serious problems, especially for Malaysia and Indonesia. Senior members of ASEAN are effectively now calling for permanent external monitors to be based in Rakhine in order to minimise the level of violence and exclusion suffered by the Rohingyas.

In addition to those states with influence, a number of important individuals have called for action, including the Pope,[33] the Dalai Lama[34] and Ban Ki moon.[35] Words are of course cheap, and action much harder, but no one can claim the world has not been warned about the realities of modern day Myanmar. And the regime is very aware of the negative impact of external comment, and worried enough to want to find ways to stem the flow of information.[36] Indeed, large sections of the recommendations from the official report on the 2012 massacres in Rakhine are focused on the need for better news management to reduce the amount of international criticism.[37]

Reference to the International Criminal Court

A related issue is the need to deal with what has happened so far. Many observers argue that what has been done in Rakhine since 2012 already constitutes genocide.[38] There have been several failed attempts to bring a case at the International Criminal Court (ICC) at The Hague.[39] At the moment, there is no means of justice, or even access to the justice system, for the Rohingyas in Myanmar. The ICC is the court of last resort for the prosecution of crimes against humanity[40] and its jurisdiction includes both the crime of genocide and more general ‘crimes against humanity’.[41] Although Myanmar is not a signatory to the 2002 Rome Statute,[42] which means it cannot (even if it wished) refer itself (this usually happens when a new regime is dealing with past abuses), and though the ICC is unlikely to receive a referral from the UN Security Council acting under Chapter VII of the Charter of the United Nations, it can still commence its own investigation if it is made aware of a possible case.[43]

The importance of using the ICC cannot be over-emphasised. So far, known powerful individuals have been responsible for the steady build up of hatred against the Rohingyas and the increasing incarceration of an entire